

A field that already moves billions through the world's courts and arbitral tribunals—and, until now, has had no institution built to explain it.

Litigation finance sits at the intersection of law, finance, economics, and access to justice. It is reshaping how the world's most consequential disputes get resolved. Most people, including many sophisticated business leaders, have never heard of it.

The Institute for Litigation Finance exists to advance access to sophisticated dispute financing and the responsible development of the litigation finance ecosystem — not on behalf of funders, or law firms, or claimants, but on behalf of the field itself.

\$25.8B

projected global litigation funding investment market, 2026

13.4%

compound annual growth rate driving that expansion

39

active U.S. commercial funders identified by the GAO, managing \$15.2B

0

independent public research institutes dedicated to this field — until now

Justice, priced fairly.

Over the past two decades, litigation finance has evolved from a niche practice into a global asset class capable of putting a strong claim on equal footing with a well-resourced defendant — regardless of who can write the bigger check.

And yet the ecosystem around it remains strikingly fragmented. Businesses with meritorious claims often have no way to know whether their matter is even fundable. Law firms burn weeks of partner time cold-calling financing partners with no visibility into who actually wants what. Investors sit on capital they are eager to deploy, with no reliable window into where the next generation of financeable disputes is emerging. Researchers, judges, and policymakers are left to reason about the legal, economic, and ethical implications of a fast-growing industry using scattered, often self-interested sources.

No one has organized this field the way mature industries organize themselves — around a shared, independent body of knowledge. The Institute for Litigation Finance exists to be that body: an independent organization dedicated to advancing the knowledge, practice, and responsible development of litigation finance through research, education, community, and AI-assisted discovery.

OUR PHILOSOPHY

Better-informed participants make better decisions.

Every inquiry the Institute receives — appropriately anonymized and analyzed only in aggregate — helps illuminate the evolving needs of a marketplace that has never had a neutral party paying attention on everyone's behalf at once. Individually, each conversation is simply someone trying to understand their situation. Collectively, they become a running census of an entire asset class in motion.

Over time, that aggregate view helps answer questions no single funder, firm, or investor is positioned to answer alone:

- What kinds of disputes are businesses actually seeking to finance, versus what the industry assumes they want?

- Which industries are experiencing rising demand for litigation capital, and how quickly?
- Where do claimants most often hit a wall in obtaining funding — and is that wall structural or just informational?
- What characteristics most reliably distinguish a financeable matter from one that will be declined?
- Which legal sectors remain underserved by current funding models?
- How are market conditions, deal structures, and funder appetite shifting year over year?

These insights feed directly back into our research, sharpen our educational resources, and push the entire litigation finance ecosystem toward something it has lacked since its founding: real transparency.

ADVANCING THE FIELD

Four pillars, in deliberate order.

Research first. Education second. Community third. The Exchange exists to fund and extend the first three — not the other way around.

01

Research

Educational resources, market analyses, historical perspectives, and interdisciplinary scholarship examining litigation finance through legal, financial, economic, and policy lenses — published independently, cited transparently.

02

Education

An AI-powered learning platform that helps businesses, law firms, investors, and advisors genuinely understand litigation finance, evaluate their options, and navigate an increasingly sophisticated market with confidence rather than guesswork.

Community

A neutral forum where litigators, financiers, academics, judges, economists, insurers, and corporate legal leaders can exchange ideas and shape the responsible evolution of the field together, rather than in isolated silos.

Innovation

By studying real-world inquiries and emerging patterns at scale, the Institute identifies unmet needs, surfaces new approaches, and supports innovation across the broader litigation finance ecosystem.

HOW THE INSTITUTE SUSTAINS ITSELF

The Exchange

Think of it the way a university thinks of its technology-transfer

office: a practical, revenue-generating arm that exists to fund the

institution's actual mission, not the other way around.

The Institute operates **The Exchange**, a professional matching service that

connects qualified funding opportunities with litigation finance providers whose stated

investment criteria genuinely align with the characteristics of a given matter. Unlike a

broad referral service, the Exchange combines AI-assisted case assessment with curated,

narrow introductions designed to reduce search costs for claimants and capital providers

alike. When appropriate, the Institute may receive compensation for successful

introductions or related professional services, subject to applicable law and contractual

arrangements — disclosed plainly, never buried.

Revenue generated through the Exchange supports the Institute's broader mission,

including:

- expanding our educational resources;

- publishing independent research and market reports;

- improving our AI assessment and matching tools;

- convening industry dialogues and conferences;

- developing best practices for responsible litigation finance; and

- advancing greater transparency and understanding across the profession.

STEP 1

Assess

The AI Concierge interviews the claimant and produces a preliminary, funder-style assessment of the matter's legal merits, damages, collectability, and financeability — the same analysis regardless of whether financing is ever pursued.

STEP 2

Prepare

If financing looks like a realistic path, the Institute helps organize the matter into a clear, professional summary — the kind of packaging institutional funders can actually evaluate efficiently.

STEP 3

Introduce

The Exchange facilitates a small number of curated introductions to litigation finance providers whose publicly stated investment criteria appear genuinely compatible with the matter — never a mass blast.

Exchange Fees

Retainer, due at engagement (non-refundable)\$7,500

Balance, due only if and when funding is receivedGreater of 2% of funds received or \$75,000

A note on this fee structure

You asked whether a 2%-of-funding success fee creates unregistered broker-

dealer exposure under U.S. securities law, since the Institute isn't a broker-

dealer. Short answer: this is a real, live issue worth resolving with securities

counsel before this operates as an actual business — and switching the number

to a flat \$75,000 doesn't fully resolve it on its own.

The SEC has consistently treated *transaction-based compensation* — any fee

that is contingent on a deal closing, or scaled to its size — as the clearest

hallmark of broker-dealer activity, and no general federal "finder's exemption"

currently exists outside narrow, fact-specific no-action letters (a 2020 SEC

proposal to create one was never finalized). A fee structure that is (a) paid only

when funds are received and (b) calculated partly as a percentage of the amount

funded reads, on its face, like the fact pattern the SEC has pursued enforcement

over — even where the fixed number is styled as an "or greater of" alternative

rather than a pure percentage.

Whether this actually matters here also depends on a genuinely unsettled

threshold question: courts and the SEC have not squarely decided whether a

litigation funding agreement itself is a "security" in the first place. If it isn't,

broker-dealer registration requirements (which attach to effecting securities

transactions) may not apply at all to introducing claimants to funders. That is

exactly the kind of fact-specific determination that needs a securities attorney,

not an AI assistant.

The more conservative alternative worth having counsel evaluate: charge the

retainer and the assessment/report fee as flat, non-contingent professional fees

for the Institute's work product (paid regardless of whether an introduction leads

to funding), and treat any success-based introduction fee as a separate question

to be resolved through a properly licensed or exempt structure. This isn't legal

advice — just flagging the issue clearly so it gets resolved before real money

moves.

Commercial activity at the Institute exists to support public knowledge
— not the other way around. That ordering is the whole point.

A SIGNATURE IDEA

Something no one else publishes.

FORTHCOMING — FIRST EDITION

The State of Litigation Finance

Institute for Litigation Finance

ANNUAL REPORT

The State of Litigation Finance

Using aggregated, privacy-protected data drawn from real inquiries to the Institute,

this annual report will answer questions no funder, law firm, or research shop can answer alone — because no single one of them sees the whole market:

Which industries generated the most funding inquiries this year?

What share of inquiries involved IP, construction, healthcare, energy, or international arbitration?

What characteristics most consistently appeared in matters that attracted funding interest — and in those that didn't?

How are average claim sizes, expected durations, and jurisdictions shifting?

What new financing structures are emerging, and where?

Valuable to funders, law firms, academics, policymakers, and corporate legal departments alike — because for the first time, it will exist at all.

Notify me

- | The Institute's loyalty is not to any one stakeholder — not funders, not
- | law firms, not claimants. It is to the quality, transparency, efficiency,
- | and integrity of the ecosystem all of them depend on.

That neutrality has to be earned continuously, not claimed once. It has to show up in which articles get published and which get cut, in how a matter gets scored, in which funders get introduced and which don't. We hold ourselves to that standard because it is the only thing that lets litigators, financiers, academics, judges, and claimants all trust the same room.

See it in motion.

Talk to the AI Concierge, or start with the Research Library.

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Institute for Litigation Finance

The Institute for Litigation Finance provides independent educational content, research, and AI-assisted matching

services. Nothing on this site constitutes legal advice, investment advice, or a guarantee of funding or case outcome.

Aggregated inquiry insights described on this page (including the forthcoming State of Litigation Finance report) are illustrative of the Institute's intended methodology; no data has yet been collected under a live product. Financier and article content elsewhere on this site is drawn from public sources believed reliable as of mid-2026 and is cited where used. © Institute for Litigation Finance. Concept prototype — not a live product.